法學英文主題整理：侵權行為法（Tort Law）

> 涵蓋 104-114 年司律一試法學英文考古題，依主題分類彙整詞彙、中英對照與考古題原文。

一、核心詞彙與中英對照

英文	中文	出題年度
tort	侵權行為	108、110
negligence	過失	105、107、109、113
strict liability	無過失責任（嚴格責任）	114
vicarious liability	代位責任（僱用人責任）	107、109、114
joint and several liability	連帶責任	114
duty of care	注意義務	110
breach	違反；違約	110
causation	因果關係	105
damages	損害賠償	多年
compensatory damages	填補性損害賠償	111、113
punitive damages	懲罰性損害賠償	111
nominal damages	名目損害賠償	111
nuisance	妨害安寧（公害）	109、114
trespass	侵入（不動產侵權）	111、113
defamation	誹謗	110
misrepresentation	不實陳述	109
fraudulent misrepresentation	詐欺性不實陳述	109

spoliation of evidence	證據湮滅	104
false imprisonment	非法拘禁	108
battery	強暴（故意接觸侵權）	111
assault	脅迫（恐嚇侵權）	111
tortfeasor	侵權行為人	107
mass torts	大規模侵權	107
negligence per se	當然過失（違反法規即為過失）	113
assumption of the risk	自甘冒險（風險承擔）	113
non-pecuniary loss / damages	非財產上損害	106
ultra-hazardous activities	高度危險活動	112
reasonable person	合理人標準	112
class action	集體訴訟（團體訴訟）	113
medical malpractice	醫療過失	111
products liability	產品責任	111
proprietor's liability	定作人責任	105
intentional torts	故意侵權	108
executory covenant	待履行契約（干擾選項）	108
devolution of property	財產移轉（干擾選項）	111
claimant	原告 / 請求權人	107

二、重要例句與考古題解析

1. 代位責任（Vicarious Liability）

107 年第 58 題

Pursuant to Article 188 of R.O.C. Civil Code, Paragraph one, an employer shall be jointly and severally liable for any injury which the employee has wrongfully caused to the rights of another in the performance of his duties. In other words, an employer is ___ liable for the negligent acts by his employees.

(A) variously (B) venomously

(C) vicariously (D) vexatiously

→ 答案：**(C)**

114 年第 58 題

In certain circumstances, A can be held liable for the torts committed by B simply because B is A's employee or agent or independent contractor, and despite the fact that injury or damage caused by B's tort may not have been the result of any fault on the part of A. What is the type of the aforementioned tortious liability?

(A) Contributory liability (B) Vicarious liability

(C) Strict liability (D) Joint liability

→ 答案：**(B)**

109 年第 56 題

While negligence law most often imposes liability on the basis of individual "fault," the concept of ___ has held some people responsible for the injuries negligently caused by others.

(A) current liability (B) vicarious liability

(C) contingent liability (D) joint and several liability

→ 答案：**(B)**

考點提示：

- **vicarious liability**（代位責任）：A 非因自身過失，而因 B 為其受僱人/代理人而對 B 的侵權行為負責。107、109、114 年各考一次，為最高頻侵權法詞彙。
- 作答關鍵：看到 "employer liable for employee's tort" 或 "held responsible for injuries caused by others" → vicarious liability。
- 與 **strict liability**（無過失責任）之區別：vicarious liability 是「為他人行為負責」；strict liability 是「不問自身有無過失」。
- 107 年題考的是副詞形式 vicariously，注意 (A) variously（各式各樣地）、(D) vexatiously（糾纏地）為詞形干擾。

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2. 無過失責任（Strict Liability）

114 年第 59 題

___ is liability regardless of fault. The plaintiff does not have to prove either that the defendant was at fault or that the defendant was not at fault.

(A) Negligent liability (B) Intentional liability

(C) Strict liability (D) Inducing liability

→ 答案：**(C)**

112 年第 56 題

Under Article 191-3 of R.O.C. Civil Code, a person who engages in ___ activities is liable for damage characteristic to nature of the activity and resulting from it.

(A) innocuous (B) ultra-hazardous

(C) anodyne (D) nuisance

→ 答案：**(B)**

考點提示：

- **strict liability**（無過失責任）：不問過失，原告無須證明被告有無過失即可請求賠償。
- **ultra-hazardous activities**（高度危險活動）：民法第 191-3 條之危險責任，為 strict liability 之典型適用場景。
- 干擾選項辨識：(A) innocuous（無害的）、(C) anodyne（無刺激的）都是「無危險」的意思，與題旨相反。

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3. 連帶責任（Joint and Several Liability）

114 年第 56 題

Under Article 185 of R.O.C. Civil Code, ___ liability is where the whole or a distinct part of the damage suffered by the victim is attributable to two or more persons.
(A) joint and several (B) discrete
(C) independent (D) increased
→ 答案：**(A)**

考點提示：

- **joint and several liability**（連帶責任）：數人共同不法侵害他人權利時，連帶負賠償責任。被害人得向任一加害人請求全部賠償。
- 干擾選項：discrete（分離的）、independent（獨立的）都暗示各自負責，與「連帶」相反。

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4. 過失與當然過失（Negligence & Negligence Per Se）

105 年第 57 題

John, driving his truck on the street, was attracted by a burning car on his left side, then hit Mary, causing her personal injury. John felt sorry for Mary, but did not offer anything to compensate Mary. Which of the following is INCORRECT at law?

(A) Mary may sue John on negligence to recover damages for her personal injury.

(B) John is not held criminally liable for his negligence unless Mary places criminal charge against John within six months after the incident.

(C) John is not legally liable for this incident at all for it is no more than an accident.

(D) The fact that Mary is covered by accident insurance is not a defense for John not to compensate Mary.

→ 答案：(C)

113 年第 56 題

An actor is negligent if, without excuse, he/she violates a statute that is designed to protect against the type of accident that the actor's conduct causes, and if the accident victim is within the class of persons the statute is designed to protect. Such rule is usually called ___.

(A) negligence ab initio (B) negligence bona fide

(C) negligence per se (D) negligence non liquet

→ 答案：(C)

考點提示：

- **negligence**（過失）：行為人未盡注意義務致他人受害。105 年題旨：駕車分心撞人，即使是「意外」，法律上仍構成過失侵權，(C)「完全不負責」是錯誤選項。
- **negligence per se**（當然過失）：違反保護特定人之法律即「當然」構成過失，無須另證注意義務之違反。
- 113 年干擾選項皆為拉丁文詞組：ab initio（自始）、bona fide（善意）、non liquet（不明確）。唯 per se（當然地）為正確法律術語。

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5. 注意義務（Duty of Care）

110 年第 58 題

Rachel is a babysitter. She left Michael, a two-year-old boy, at home alone and sneaked out to go shopping. After 30 minutes, Michael put a fork into an electric plug and was seriously injured. Rachel was negligent for breaching of ___.

(A) care of duty (B) duty of care

(C) duty of notification (D) watching of obligation

→ 答案：**(B)**

考點提示：

- **duty of care**（注意義務）：保母對幼兒負有照護之注意義務，離開幼兒獨處即為違反。
- 干擾選項：(A) care of duty 語序顛倒；(C) duty of notification（通知義務）、(D) watching of obligation 非標準法律用語。

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6. 因果關係（Causation）

105 年第 67 題

Vincent has a 10-minute quarrel with Dan before he goes to work. On Vincent's way to work, a drunk driver hits him. Vincent sues Dan for his injuries and claims that Dan negligently delays his schedule. Dan may argue that there is no ___ between Vincent's injuries and Dan's acts.

(A) causation (B) casualty

(C) link (D) collision

→ 答案：**(A)**

考點提示：

- **causation**（因果關係）：侵權行為須證明行為與損害間有因果關係。本題中 Dan 的爭吵行為與 Vincent 被醉駕撞傷間欠缺因果關係。
- 干擾辨識：(B) casualty（傷亡）= 結果而非關係；(C) link（連結）非法律術語；(D) collision（碰撞）= 物理事件。

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7. 公害（Nuisance）

114 年第 57 題

Oliver liked to play music extremely loud and it always woke up Mr. and Mrs. Smith at midnight. Oliver was liable to Mr. and Mrs. Smith for ___.

(A) trespass (B) nuisance

(C) pain and suffering (D) mental distress

→ 答案：**(B)**

109 年第 57 題

According to the Restatement (Second) of Torts, a public ___ is an unreasonable interference with a right common to the general public. For example, a conduct involves a significant interference with the public health or safety is considered as unreasonable.

(A) repugnant (B) nuisance

(C) annoying (D) defamation

→ 答案：**(B)**

考點提示：

- **nuisance**（妨害安寧/公害）：不合理干擾他人使用、享受其財產的行為。分為 public nuisance（公共公害）和 private nuisance（私人侵害）。
- 114 年題：深夜大聲放音樂 → private nuisance。注意與 trespass（實體侵入）的區別：nuisance 不須實體進入他人土地。

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8. 侵入（Trespass）

111 年第 56 題

Eric was next door to Ben. Eric decided to build a new swimming pool in his backyard. After the construction was done, Ben found the pool was partly built on his land. It is a ___ if Eric intentionally built his pool on other's land.

(A) trespass (B) battery

(C) assault (D) misrepresentation

→ 答案：**(A)**

113 年第 64 題

A(n) ___ is a person entering or remaining upon land in the possession of another without a privilege to do so created by the possessor's consent or otherwise, who is not an invitee entering or remaining on the land upon an invitation.

(A) business visitor (B) social guest

(C) trespasser (D) offender

→ 答案：**(C)**

考點提示：

- **trespass**（侵入）：未經同意故意進入或使用他人不動產。
- **trespasser**（侵入者）：113 年考定義題，指未經同意亦非受邀而停留於他人土地之人。
- 與 battery（強暴接觸）、assault（恐嚇脅迫）之區別：trespass 針對不動產，battery/assault 針對人身。

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9. 誹謗（Defamation）

110 年第 56 題

___ is the term used to describe the tort of making a false statement of fact that injures someone's reputation.

(A) Misrepresentation (B) Adulation

(C) Disparagement (D) Defamation

→ 答案：**(D)**

考點提示：

- **defamation**（誹謗）：以虛偽事實陳述損害他人名譽之侵權行為。
- 干擾辨識：(A) misrepresentation（不實陳述）→ 契約法或詐欺脈絡；(C) disparagement（商品貶抑）→ 針對商品而非個人名譽。

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10. 非法拘禁（False Imprisonment）

108 年第 58 題

Which of the following illustrations of Larry's acts is not subject to liability for a false imprisonment?

(A) Larry locks Jason in a room which has only one exit. However, if Jason uses the exit, his act will cause substantial bodily harm to Ben.

(B) Lilly is a patient with a disease which makes any exertion vital to her. Larry locks Lilly in a room which has two open windows at a height of 100 cm from the floor and the ground outside.

(C) Larry locks Kevin, who is an athlete, in a room which has two open windows at a height of 100 cm from the floor and the ground outside.

(D) Larry is a shop owner who knows his customer Jane is in his shop. But he locks the only door of the shop to prevent a third person from entering when he goes out for his lunch.

→ 答案：**(C)**

考點提示：

- **false imprisonment**（非法拘禁）：非法限制他人行動自由。關鍵在於被害人是否有「合理途徑」可離開。
- (C) Kevin 是運動員，窗戶離地僅 100cm → 有能力攀窗離開 → 不構成 false imprisonment。
- (A)(B)(D) 三者被害人均無合理離開途徑：(A) 離開會傷害他人；(B) 病人無體力攀窗；(D) 唯一出口被鎖。

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11. 損害賠償類型（Types of Damages）

111 年第 65 題

___ could be awarded in addition to actual damages when the defendant acted with recklessness, malice, or deceit.

(A) Compensatory damages (B) Nominal damages

(C) Punitive damages (D) Consequential damages

→ 答案：**(C)**

111 年第 69 題

In a civil case, ___ are a trivial sum of money awarded to a plaintiff whose legal right has been technically violated but who has not established that they are entitled to compensatory damages because there was no accompanying loss or harm.

(A) nominal damages (B) trivial awards

(C) declaratory compensations (D) punitive damages

→ 答案：**(A)**

113 年第 58 題

The purpose of tort law is to provide relief for the victim for harm actually done, which is expressed in money terms, shall include replacement of property destroyed and reimbursement for medical expenses. Damages for these harm are called ___.

(A) nominal damages (B) punitive damages

(C) equitable remedies (D) compensatory damages

→ 答案：(D)

106 年第 56 題

Mark's father is murdered by Hamlet. Under Article 194 of R.O.C. Civil Code, Mark may request Hamlet to compensate his ___ loss.

(A) monetary (B) economic

(C) non-pecuniary (D) consequential

→ 答案：(C)

考點提示：

- 三大損害賠償類型務必區辨：
    - compensatory damages（填補性損害賠償）：填補實際損害（財產毀損、醫療費用等）。
    - punitive damages（懲罰性損害賠償）：被告有惡意（malice）、故意欺瞞（deceit）或重大過失（recklessness）時，於實際損害外額外給付。
    - nominal damages（名目損害賠償）：權利雖受侵害但無實際損害時，象徵性賠償。
- non-pecuniary damages（非財產上損害）：精神痛苦等非金錢損害，民法第 194 條（侵害生命權之非財產損害）。

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12. 自甘冒險（Assumption of the Risk）

113 年第 57 題

Peter signed a release for personal injury before he took a diving class but he was bitten by a sea snake under water. If Peter decides to sue the diving school, what is the strongest argument the school may raise against him?

(A) self-defense (B) necessity

(C) assumption of the risk (D) consent

→ 答案：**(C)**

考點提示：

- **assumption of the risk**（自甘冒險）：被害人事先知悉並自願承擔風險時，加害人得以此為抗辯。Peter 簽署了免責聲明 → 學校最有力抗辯即為 assumption of the risk。
- (D) consent（同意）接近但不精確：assumption of the risk 特指「明知風險而參與」，consent 較廣泛。

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13. 集體訴訟（Class Action）

113 年第 69 題

A company produces a medication that is widely used to treat a certain medical condition. After a few years, patients who have taken the medication begin to report severe side effects, such as heart problems and kidney failure. It is later discovered that the medication was defective and the company knew about the defects but failed to warn patients or recall the product. If the patients want to file a tortious claim against the company, which of the following action is the most practical form to pursue such a claim?

(A) A subrogation action (B) A class action

(C) A shareholder derivative action (D) A medical malpractice action

→ 答案：**(B)**

考點提示：

- class action（集體訴訟）：大量受害人因相同產品缺陷受害時，由代表人代全體提起訴訟，最具實務效率。
- (D) medical malpractice（醫療過失）看似相關，但本題針對的是「製藥公司的產品瑕疵」而非醫師的醫療行為，且原告人數眾多，class action 更為適切。

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14. 侵權行為法總論（Tort Law Overview）

108 年第 56 題

Tort law can be defined as the law of ___.

(A) civil disobedience (B) civil wrongs

(C) civil commitment (D) civil disability

→ 答案：**(B)**

108 年第 57 題

Which of the following is not one of the types of tort law in common law?

(A) negligence (B) intentional torts

(C) executory covenant (D) strict liability

→ 答案：**(C)**

110 年第 57 題

While a crime such as murder or shoplifting is a wrong committed against society, a tort is a ___ committed against an individual.

(A) private wrong (B) civil wrong

(C) public wrong (D) contradict wrong

→ 答案：**(B)**

111 年第 57 題

Which of the following is not a sub-field of the law of torts in American common law?
(A) medical malpractice (B) products liability
(C) auto accidents (D) devolution of property
→ 答案：**(D)**

考點提示：

- **tort = civil wrong**（民事上的不法行為）：108、110 年各考一次定義，為最基礎考點。注意 tort 是對「個人」的不法，crime 是對「社會」的不法。
- 侵權行為法三大類型：**negligence**（過失）、**intentional torts**（故意侵權）、**strict liability**（無過失責任）。108 年以 executory covenant（待履行契約）為干擾選項。
- 侵權行為法子領域：medical malpractice（醫療過失）、products liability（產品責任）、auto accidents（車禍）皆屬之；devolution of property（財產移轉）屬物權/繼承法。

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15. 侵權行為人與大規模侵權（Tortfeasor & Mass Torts）

107 年第 56 題

In recent decades, in the U.S., cases involving many people injured by the same conduct, known as ___, have become more important than before.
(A) mass torts (B) mass asset
(C) mass defect (D) mass spectrometry
→ 答案：**(A)**

107 年第 57 題

Which of the following is not used to describe a defendant in any tort case?
(A) A claimant (B) A tortfeasor
(C) A trespasser (D) A wrongdoer
→ 答案：**(A)**

考點提示：

- **mass torts**（大規模侵權）：多人因同一行為受害之案件（如藥害、環境污染），為美國近年重要議題。
- **tortfeasor**（侵權行為人）：被告在侵權案件中的稱呼。注意 (A) claimant（原告/請求權人）是描述原告而非被告，故為正確答案。
- 干擾選項：mass spectrometry（質譜分析）為自然科學用語，與法律無關。

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16. 定作人責任（Proprietor's Liability）

105 年第 58 題

Under the Article 189 of the Civil Code, the proprietor is liable for third party's injury caused by the contractor's negligence ONLY if:

(A) The proprietor wrongfully selected the contractor.

(B) The proprietor wrongfully supervised the contractor.

(C) The work which caused injury was under the negligent instruction of the proprietor.

(D) The work which caused injury was under the negligent instruction of the contractor.

→ 答案：**(C)**

考點提示：

- 民法第 189 條：定作人原則上不對承攬人的過失負責，**例外**在於定作人於「定作或指示有過失」時始負責。
- (A) wrongfully selected（選任過失）是用人責任（§188）的概念，非定作人責任。
- (B) wrongfully supervised（監督過失）同為 §188 概念。
- (D) instruction of the contractor（承攬人的指示）→ 主詞錯，應為 proprietor 的指示。

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17. 詐欺性不實陳述（Fraudulent Misrepresentation）

109 年第 61 題

According to the Restatement (Second) of Torts, ___ is the maker who is not confident in the accuracy or knows he has no basis of his representation.

(A) invalid misrepresentation (B) nuisance

(C) defamation (D) fraudulent misrepresentation

→ 答案：**(D)**

考點提示：

- **fraudulent misrepresentation**（詐欺性不實陳述）：行為人對其陳述之正確性缺乏確信，或明知無根據仍為之。
- 與 defamation（誹謗）之區別：前者重點在「不實陳述→財產損害」，後者重點在「虛假事實→名譽損害」。

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18. 合理人標準（Reasonable Person Standard）

112 年第 57 題

In tort law, the standard of care required by law for the protection of others against unreasonable risk of harm is the standard of a(n) ___.

(A) rational person (B) ordinary person

(C) average person (D) reasonable person

→ 答案：**(D)**

考點提示：

- **reasonable person**（合理人）：判斷過失之客觀標準，為英美侵權法核心概念。
- 干擾選項：rational（理性的）、ordinary（普通的）、average（一般的）意思接近但非法律術語。正確用語固定為 reasonable person。

三、一試重點提示

1. **代位責任 vs. 無過失責任 vs. 連帶責任**：此三者為最高頻考點，107-114 年幾乎每年必考，務必能區辨。
2. **侵權行為法總論**：tort = civil wrong（民事不法行為），與 crime（刑事犯罪）之區別。108、110 年各考一次。
3. **侵權行為法三大類型**：negligence（過失）、intentional torts（故意侵權）、strict liability（無過失責任）。
4. **negligence per se**（當然過失）：違反保護性法規即構成過失，113 年新出題型。
5. **損害賠償三分類**：compensatory / punitive / nominal damages，111 年一次考三種，106、113 年各考一題。
6. **侵權行為子類型**：trespass、nuisance、defamation、false imprisonment、battery、assault，需熟悉各自定義與構成要件。
7. **reasonable person standard**（合理人標準）：判斷過失之客觀標準，112 年出題。
8. **assumption of the risk**（自甘冒險）：被害人事先知悉並自願承擔風險，可作為抗辯。
9. **定作人責任**（proprietor's liability）：民法 §189，定作人於定作或指示有過失時始負責，與 §188 用人責任區別。
10. **tortfeasor / mass torts / class action**：侵權行為人、大規模侵權、集體訴訟，為題目常見之程序面概念。